

Rizwan Ahmad v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 5 September 2014 · WRIT - C No. 47543 of 2014 · **Writ disposed of; respondent no.4 to examine the line-installation objection.**

HEADNOTE

An objection under clause 4.5(d) of the U.P. Electricity Supply Code, 2005 that a colony supply line is hazardous is to be examined by the concerned electricity officer, who shall pass appropriate orders on installation; the writ court will not decide the objection in the first instance.

FACTUAL SUMMARY

Rizwan Ahmad approached the Allahabad High Court because an electricity line was being laid through a colony and he considered the alignment hazardous to his residence. He had objected, relying on clause 4.5(d) of the U.P. Electricity Supply Code, 2005, which his counsel said entitled him to inspection and consideration of the objection, yet the line continued to be installed. Permission for the work had been granted by the electricity corporation for the colony, of which respondent no.6 was President.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.5(d)

landowner objection to supply line

HOLDING

A grievance that a supply line being installed for a colony is hazardous to the petitioner's residence, and that an objection under clause 4.5(d) of the U.P. Electricity Supply Code, 2005 has not been considered, is to be examined by the concerned electricity officer (respondent no.4), who shall pass appropriate orders on installation of the line; the writ petition is disposed of with that direction and without a finding on the alignment. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE SUPPLY LINE IS HAZARDOUS TO THE PETITIONER'S RESIDENCE OR MUST BE ALTERED UNDER CLAUSE 4.5(D)

Respondent no.4 was directed to examine the grievance and pass appropriate orders; no finding on the alignment. ¶ 1